

Chapter - 3

THE IMPACT OF THE BRITISH RULE IN INDIA



We learn the following in this chapter.

- *Administrative and Judicial System – Civil Services, Judicial System, Police System, Military System.*
- *Land Tax Policies – Permanent Zamindari System, Mahalwari System, Ryotwari System.*
- *Modern Education – Lord Macaulay, Wood’s Commission (1854).*
- *Acts during British Rule – Regulating Act, Pitts India Act, Charter Acts.*

The British East India Company fulfilled its commercial needs in the beginning as a Trade Company. On observing the fractured political landscape of India wherein hundreds of ruling dynasties were competing with each other, the British thought of exploiting the situation to further their political consolidation. They implemented ‘Divide and Rule’ policy among the Indian rulers and slowly dominated all the rulers and subjugated them. In order to achieve complete domination on India, they employed ‘War’ and ‘Negotiation’ methods cleverly.

After getting India under control by employing various clever means, the British thought of strengthening their hold over India permanently. At that time, India was devoid of ‘One Nation Concept’ and was scattered into various kingdoms. The British integrated the whole of India under one administrative and political structure. Education, Judiciary, Land taxes, Trade and Agriculture and various other areas of activities were regulated under various laws and administrative system. This brought in a new structure to India. While implementing all these measures, they never forgot to protect their financial interests. The British East India Company implemented various administrative experiments in order to achieve a new order in India.

Administrative and Judicial System

Civil services : Lord Cornwallis introduced the administration of civil services. The system of appointing employees for the purpose of trade was done by the British East India company from the beginning. The company also provided permission for private workers to trade. By using these opportunities employers made money became corrupt through illegal means. So to control this, in 1773 the government of England implemented Regulating Act in India. The aim of regulating act was as the name suggests to enforce control.

In 1801, Lord Wellesley opened Fort William College in Calcutta to provide education for the benefit of people aspiring to join Civil Services. But, this initiation did not find support from the directors of the British East India Company. As a result, all the appointments till 1853 were done by the directors. From 1853 onwards, the appointments for Civil Services were done through Competitive Examinations. This did not benefit Indians much. The British continued to suspect the efficiency of the Indians. Lord Cornwallis argued "All the natives of Hindustan are corrupt". As a result, only lower grade jobs were given to Indians.

The Judicial System :

A new Judicial System started finding roots when the British rule began taking over from the Mughal rule. After the Battle of Buxar in 1764, the Mughal Emperor Shah Alam handed over the 'Diwani Rights', the authority to collect land taxes to the British. With this, Dual-Administration came into effect in Bengal region. This is also called as 'Dual-Government'. Later on the British thought of bringing more centralized judicial system in India. With the implementation of this system, the British overtook the authority of the Mughal and established their supremacy in India. This was attained by implementing new Judicial System in India.

According to the administrative plan devised by Warren Hastings who took over the administration as Governor in 1772, two types of courts were needed to be established in each district: 'A Diwani Adalat' as a civil court and 'Nijamat Adalat' as a criminal court. In these civil courts Hindus were dispensed justice as per the Hindu scriptures and the Muslims as per the Shariyat. Slowly, the British legal procedures were introduced in the criminal courts. Civil courts came under the administration of European officers. Though the criminal courts were under the control

of 'Qajis', they were functioning under the supervision of European officers.

Police System : The Police were in charge of maintaining the internal law and order situation. Lord Cornwallis implemented the efficient Police System in India for the first time. He created the new post of Superintendent of Police (SP). He divided a district into many 'Stations' in 1793 and put every station under a 'Kotwal'. Similarly he put every village under the care of 'Chowkidhar'. 'Kotwal' was made accountable for thefts, crimes and other law violations at village level.

The severe drought of 1770 led to a weak law and order situation. Hence, the entire police system was brought under the control of the British Officers. The system of appointing British Magistrates started in 1781. The Police Officers were under the power of the Magistrates. The Police system underwent continuous changes. In 1861, the Indian Police Act was implemented. This law became the base of good law and order as well as administration. But, Indians were not appointed for the post of officers. In 1902, the Police Commission allowed the appointment of suitable Indians qualified for the post of the police officers. In spite of all these measures, the discrimination against the Indians did not end.

Military System : The Military was the base of administration during the British Rule. The British appointed the Indians for the military and took the entire India under their control with the help of the military. They protected their supremacy by addressing the challenges posed by outside as well as inside forces with the help of the military. The officers were again the British. The Indians could reach the rank of Subedar, the highest post available to them. Most of the Indians were Coolie Soldiers. The British Government accepted the recommendations of Peel Commission in 1857. Based on these recommendations, the Military System was redesigned.

Land Taxes Policies

The British East India Company had to pay four lakh pounds to the British government annually. They kept Bengal province as their center. In order to fulfill this commitment, the Company had to stabilize its financial interests in a secured manner. Hence, it implemented many new land tax policies.

Permanent Zamindar System : Lord Cornwallis implemented a new land tax policy in Bengal during 1793 in order to generate steady revenue annually. This was called Permanent Zamindari System. Under this system, Zamindar became the land owner. The Zamindar was expected

to pay the agreed land taxes to the British East India company on a set date every year. He was free to collect any amount of land taxes from the farmers and could retain the excess money collected. This benefitted the Zamindar more. If the Zamindar was unable to collect land taxes due to floods and famine and pay the British East India Company, the ownership of the lands was taken away by the British East India Company. Both the Zamindar and the British East India Company were benefitted by this system, but the farmers were the grave sufferers. This system created a new social group that aided the British. The farmers, the farming labourers suffered due to irregular working opportunities in the farming lands. They were exploited and had to lead a life of insecurity. This system was extended to Bihar, Odissa, Andhra and Varanasi regions later.

Mahalwari System: The British East India Company government entered into an agreement at the level of 'Mahals' with regard to payment of land tax in Uttar Pradesh, in many parts of Madhya Pradesh, Punjab and Delhi. 'Mahal' means taluk. R.M. Bird and James Thompson implemented this system. There were differences in the implementation of this system from region to region. The big and small zamindars were part of this system. Since the company officials fixed more land tax than the expected production from the fields; many zamindars had to lose their ownership of the lands. The marginal farmers and agricultural labourers who were dependent on these zamindars also suffered due to this.

Ryotwari System: The Ryotwari System was first implemented in Baramahal region by Alexander Reed in 1792. This system was later implemented in Madras and Mysore region by Thomas Munroe in 1801. Most of these regions had become part of British Empire by that time. Under this system, both the farmer and the British East India company were directly linked. The tiller of the land was recognized as the owner of the land. The owner had to pay fifty percent of produce as land tax to the British East India company government. The land tax had thirty years tenure. The tax could be reviewed after this tenure.

Though the small farmers were given land ownership, they were subjected to more suffering due to heavy land taxes. The officials took punitive actions to collect land taxes. The farmers had to borrow from the money lenders whenever the crops failed. They had to sell their lands whenever they failed to repay the loans. Though the British East India company government claimed that the new system benefit the farmers, the irony was that more farmers had to lose their lands due to

its implementation. According to Charles Metcalf, “the Indian farmers were born in debt, lived in debt and died in debt due to the land tax policies of the British”.

The Impact of British Land Tax system :

1. A new class of Zamindars who exploited the farmers was created.
2. The farmers who were subjected to the exploitation of the Zamindars, became landless slowly.
3. Land became a commodity. Loans could be raised by mortgaging the lands.
4. Many Zamindars also had to mortgage their lands in order to pay the land taxes.
5. The Agriculture sector became commercialized and had to grow raw materials needed by industries back in England.
6. The money lenders became strong.

The Modern Education System

The traditional education of Indians was in practice continuously. Certain changes occurred in the traditional education system during the rule of Muslim kings during the middle ages. Later, new changes occurred during the British rule during 18th century. New schools were started for the children of British and Europeans living in India. Since these facilities were never extended to the locals, it was of no use for them. Warren Hastings facilitated the expansion of the modern education in India. In 1781, he started ‘Calcutta Madrasa’. Jonathan Duncan, a British citizen started Sanskrit College in Banaras in 1792. But, it was Charles Grant who pressed for the expansion of British education in India.

After the beginning of the 19th century, the English system of education got its momentum. The expansion of the British Education India received special support after the appointment of Lord William Bentinck in 1828 C.E as the Governor General of India. Bentinck appointed Macaulay as the member of Governor General’s Executive Committee. Macaulay was also appointed as the Chairperson of the Committee on Education. The report on Education submitted by him in 1835 became the base of modern education in India. His policy aimed at the “creation of a new class of Indians who were Indian by body but British in intelligence,

opinion and taste”. The use of English medium in Indian learning system started after 1830s.

Another important development included the establishment of Universities in India. The Governor General Lord Dalhousie established Universities in Calcutta, Bombay and Madras as per the suggestions of Charles Wood’s Commission (1854). After this, the education was universalized in India.

The Impact of British Education in India

1. Indians could develop modernity, secularism, democratic attitudes and rationality along with Nationalistic ideals.
2. Impetus was received for the local literature and languages. This facilitated unity in thinking process among the educated class.
3. Periodicals started emerging. These scrutinized the policies and working of the government which in turn enabled the Indians to have critical opinions on various issues.
4. New social and religious reformation movements emerged.
5. The thoughts of thinkers like J.S. Mill, Rousseau and Montesquieu brought fresh thinking in the mind of educated youth of India.
6. The freedom struggles that were taking place across the globe influenced the Indians also.
7. Indians could understand and appreciate their rich tradition.

In this way, the new thinking and cultural perception that emerged due to the British Education System created a new generation of Indians with progressive attitudes.

Constitutional Development

Along with the British administration, problems also grew in India. In order to alleviate the problems, reformation in administration became important. And these reforms needed to address the demands of Indians. The British attempted to create different rules in the form of law and tried to implement them. These types of laws helped the evolution of Constitution in India. We shall study some of the acts in this regard.

Laws Implemented during the rule of East India Company (1773-1858)

Regulating Act - 1773 : After the implementation of Diwani Rights in 1765, the greedy Company officials misused this provision and became rich in a corrupt way. Corruption spiralled out. Edmond Burk, a member of the British Parliament criticized the corruption in the British East India Company. He criticised the tax payment received by the British Government from the British East India Company as 'Criminal Tax'. He was forced to criticize in this manner, as the government remained silent to the fact of corruption among the Company officials. Many Company officials had become super rich and many in England feared that these people may upset the very political setup of England. The Regulating Act was implemented in this background in 1773.

Main features of the Act

1. Before the implementation of the act, there were three presidencies under British rule. They are: Bengal, Madras and Bombay. All these three were independent administrative units. Under Regulating Act, the Bengal Presidency gained control over the other two presidencies.
2. The Governor of Bengal became the Governor General of all the three presidencies.
3. The Governor General was authorized to direct, exercise control and to supervise over the other two presidencies.
4. The Bombay and Madras presidencies could not declare war on anyone or enter into peace agreements without prior approval of the Governor General of Bengal Presidency and the Board of Directors of the British East India Company. Only during acute emergencies, they were entitled to act independently.
5. According to this Act, Supreme Court was established in Calcutta. In this central court, one Chief Justice and three ordinary judges were officiating.

Like this, as the name of the Regulating Act suggests, the Act aimed at regulating the Company affairs and its administration in India under the control of the British Government.

Pitts India Act 1784 :

There were many inconsistencies in the Regulating Act of 1773. In order to rectify them and also to clearly outline the powers of the British East India Company and the British Government, Pitts India Act was implemented. The Government of England restricted the powers of the East India Company.

Another important aspect of this Act was the establishment of the 'Board of Controllers' consisting of six Commissioners. The 'Board of Controllers' replaced the 'Board of Directors'. This Board had powers to direct and control the issues related to Land taxes, Military and Civil areas. The Board of Control came into existence in the place of Board of Directors.

This act declared that "the Indians have attained their paramount power in the name of the British Empire only, but not on their own" and curtailed the Political Rights of Indians conclusively. It declared that the areas under the possession of the East India Company were the integral part of the British Empire. Hence, the Government of England was the ultimate ruler of India.

Charter Acts

The main aim of Charter Acts was to extend the license of the East India Company. The Charter Acts of 1793, 1813, 1833 and 1853 were implemented to achieve this aim. As and when the Charters were implemented once in 20 years, the new rules and regulations found fit by the British Government were included in these Acts. Among these, the Charter Acts of 1813 and 1833 are important for Historic reasons.

Charter Act of 1813 :

1. This act licensed the British East Company to stay for another twenty years in India. Before the implementation of this act, a demand to allow any interested person to carry out trade in India was there. This act allowed this demand and authorized all interested persons to carry out trade in India. With this act, the free trade era started in India.
2. A new era of License and permit was started.

3. The Board of Directors was vested with the powers to appoint the Governor General and the Commander-in-Chief.
4. The Churches were allowed to enter India officially. The Christian Missionaries were directed to enrich the knowledge of Indians and also enhance the moral and spiritual life of Indians. Many Christian Missionaries started arriving in India after this act. The expansion of Christianity and English Education started taking place.

Because of these developments, the Charter of Act of 1813 is a historic act.

Charter Act 1833

This act aimed at improving the political situation in India. It also licensed East India Company to remain in India for another 20 years. The main aspects of this act were :

1. The Governor General of Bengal was named as the Governor General of India.
2. The Governor General was vested with powers to direct, control and supervising all trades in India.
3. The Central Government of Bengal had the final right to decide on issues like war, peace and diplomatic relationship with the princely states of India.
4. The Governor General was mandated to put his difference of opinion with Executive Committee members in writing whenever he differed with the majority opinion.
5. The Act barred any discrimination based on religion, birth and skin colour.
6. The Governor General was mandated to appoint a law professional as member to his executive committee.
7. All British Trade Companies were allowed to have trade relationship in India.

The Charter Act of 1833 throws more light on the internal situation of India and also the various political developments present in England during 1830's.

British Government Acts (1858 - 1947)

The Sepoy Mutiny' took place due to maladministration of the British East India Company and anti-Indian acts in 1857. As a result, the administration of India was handed over to the British Queen from the British East India Company. During this period India Government Acts of 1858, 1861, 1892, 1909, 1919 and 1935 were implemented. Due to various political developments during different periods makes these acts historically very important.

Indian Government Act 1858 :

This act needs to be understood in the backdrop of civil and military unrest that took place in 1857. India came under the direct rule of British government. The Queen of England, Victoria, announced that all round development of India would be ensured by the British government on November 01, 1858. The following were the important features of this act :

1. The license of The British East India Company was cancelled and India was brought under the direct administration of the Queen.
2. The post of Governor General was changed into 'Viceroy'. Lord Canning became the first Viceroy of India.
3. A new post called 'Secretary of State for India' was created in the British government. The secretary was part of British cabinet and was responsible for the administration of India.
4. A Council of India was created in order to assist the secretary in the administration. The council had fifteen members.

Indian Councils Act of 1861:

This is an important act that came into effect after the 1857. With this act, Indians were allowed to participate in the process of creating

laws. In order to understand the aspirations of Indians, representation was given to Indians. This is called as 'Policy of Assertion'. The following are the **important features of this act** :

1. Indians were nominated to the Council of Viceroy as non-official members.
2. Viceroy was authorized to proclaim 'Ordinances' in case of emergency.

Indian Councils Act of 1892 :

This act is the continuation of Indian Council Act of 1861. This act of 1892 further extended the participation of Indians in the legislative bodies. The critical view expressed by the Congress Organization towards the British administration led to this expansion of Indian representation in the governance. The following were the important features of this act:

1. The number of additional members in the regional and central legislative bodies was increased.
2. The legislative councils' authority was increased further by allowing discussion on budget related issues.
3. Provision was made to question the government on public issues by serving six days' notice in advance.

Indian Councils Act of 1909 :

This act is also called as 'Minto-Morley Reforms Act'. During the formulation and implementation of this act, Lord Minto was the viceroy of India and Lord Morley was the Secretary of State for India. This Act was used to divide and rule India. The following were the important features of this Act:

1. The total number of central legislature members were increased to 60 from 16.
2. The number of council members were also increased in the provinces.
3. The members for the legislature was allowed through election for the first time.

4. In order to provide separate representation for Muslims, 'Separate Electorate College' was created.

Government of India Act of 1919 :

Since Indians took active part in the First World War, Lord Montague who was the Secretary of state for India argued in favour of providing more representations to Indians in the matter of administration. He was in favour of allowing people's participation in the formation of government gradually. Lord Chelmsford, who was the Viceroy then declared various reformatory measures to the British Parliament on 20.08.1917. The Indian Councils Act of 1919 was formulated by accepting this report. This act is also called 'Montague-chelmsford Reforms Act'. The following were the important features of this act :

1. Act formulated Bi-Cameral legislative body. Lower House and Upper House were formed.
2. Dyarchy was allowed at provincial governments.
3. A high commissioner was appointed for India.
4. Promised to improve local self government.
5. Provincial budget was separated from central budget.
6. 'Separate Electoral College' was extended for Muslims, Sikhs, Anglo-Indians and Europeans.

Government of India Act of 1935

This act acted as the base for the formation of Indian Constitution. The report submitted in 1928 under the leadership of Motilal Nehru was instrumental in the formation of the act. Most the provisions in the Indian Constitution are based on this act. This act allowed the formation of fully responsible government by Indians. This act was applicable both to the Indian principalities and also to the British India regions. The following were the important features of this act:

1. A federal system of Indian Principalities, British governed regions and dominion states was formed.
2. Reserve Bank of India were established.
3. Dyarchy was established at the centre.

4. Dyarchy was abolished at the provincial level and autonomy was granted.
5. The Federal Court was established.

One should understand the various political developments that resulted in the formation of various acts that aided the formation of Indian Constitution. Though these acts serve the purpose of British interest, they also include the aspirations of Indians for self-governance. These acts should be understood as the result of struggle led by Indians for self-rule.

EXERCISES

I. Fill in the following blanks with suitable answers:

1. Diwani Adalat in civil court was introduced by
2. The post of Superintendent of Police was created by
3. The Permanent Zamindari system was introduced in Bengal and Bihar provinces in
4. The Land tax system introduced by Alexander Reed is
5. The report given by became the base of modern education system.
6. The Regulating Act was implemented in the year.....

II. Discuss and answer the following questions:

7. Illustrate the judicial system formulated through The British East India Company.
8. What were the measures undertaken at the time of the British in Police system?
9. British landtax system made the Indian farmers to “born in debt, lived in debt and died in debt”. How?
10. What were the main aspects of Ryotwari system?

11. What were the effects of British Land taxes?
12. Make a list of the effects of British Education in India.
13. What were the restrictions imposed in Regulating Act?
14. What were the important features of the Indian government act of 1858?
15. How does the India Government Act of 1935 become the base of Indian Constitution?
16. What were the important features of 1919 Act?

III. Activities :

1. The British created a friendly environment for themselves by implementing administrative reforms in India. Organize a debate competition on this topic.
2. Collect information on various other laws implemented by the British apart from those discussed in lesson with the help of your teacher.

